

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 09/02/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Tanaka – Trust; 30-2025-01478615	Motion to Be Relieved as Counsel of Record <u>No tentative ruling.</u>
2	Rivas – Probate; 30-2023-01348724	Motion to Appoint Receiver; Suspend Personal Representative The hearing on Sarai Mejia Villa’s Motion for Appointment of Receiver, etc. (ROA 601) is CONTINUED to 10-14-26 at 9:00 a.m. in Department CM08 to allow the opposing party Esther Castaneda to file supplemental briefing. Villa submitted new evidence in support of her reply brief. “[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . .’ and if permitted, the other party should be given the opportunity to respond.” (<i>Jay v. Maffey</i> (2013) 218 Cal.App.4th 1522, 1537–1538.) Considering the history of this case and to preserve the resources of both the parties and the court by determining this issue on this motion, the court will continue the hearing and allow Castaneda an opportunity to provide supplemental briefing and evidence in response to the new evidence submitted on reply. The hearing on this motion is CONTINUED to 10-14-26 at 9:00 a.m. in Department CM08. Castaneda may, if she wishes, provide supplemental briefing and evidence responsive to

		the new evidence offered on reply no later than 10-1-26. Villa is not authorized to submit any response. Villa to give notice.
3	Franke – Trust; 30-2024-01435677	Motion to Correct Order
4	Quigley – Trust; 30-2025-01451444	CONTINUED TO 10/21/2026 AT 09:00 AM
5	Lakey – Trust; 30-2025-0154307	Motion to Dismiss Lyndell Lakey’s Motion to Dismiss, or Alternatively to Stay, Proceeding for Inconvenient Forum (ROA 18) is DENIED. The accompanying request for judicial notice (ROA 45) is GRANTED as to Exhibits 1, 2, 5, 6, & 8 and DENIED as to Exhibits 3, 4, & 7. The court takes judicial notice of the existence and legal effect of the judicially noticed documents but does not take judicial notice of the facts asserted within them. (<i>Herrera v. Deutsche Bank National Trust Co.</i> (2011) 196 Cal.App.4th 1366, 1375 [“Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning”].) This motion arises out of two separate proceedings filed in two states. This proceeding (the California Proceeding) arises out of The Carol A. Lakey Revocable Trust (2013 Trust). Petitioner Lynne L. Bobo (Lynne) initiated the California Proceeding in August 2025 by filing a petition (ROA 2) seeking three determinations: (1) that the 2013 Trust is valid; (2) that a particular special warranty deed is valid; and (3) that Lyndell Lakey, Lynne’s brother and the moving party on the instant motion, violated the 2013 Trust’s no contest provision by filing a proceeding in Circuit Court of the State of Missouri, County of Douglas (the Missouri Proceeding) in June 2025. Lyndell’s petition in the Missouri Proceeding arises out of revocable trust agreement executed by Harold Lakey and Carol Lakey on November 14, 2008 (2008 Trust). He

	seeks a determination that: (1) the Missouri Proceeding is not a violation of the 2008 Trust's no contest clause and (2) the 2008 Trust is valid and enforceable. The 2008 Trust that is the subject of the Missouri Proceeding and the Trust that is the subject of the California Proceeding address, in part, the same real property and other overlapping assets but provide for different distributions. By the motion before the court, Lyndell seeks, pursuant to Code of Civil Procedure section 410.30(a), to dismiss or stay the California Proceeding pending the outcome of the Missouri Proceeding. Section 410.30(a) reads: "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." In his motion, Lyndell argues California is an inconvenient forum, and the issues should be determined in the Missouri Proceeding. However, the California Proceeding raises completely different issues than the Missouri Proceeding. Accordingly, staying or dismissing the California Proceeding will not lead to a resolution of the issues raised in the California Proceeding. The Missouri Proceeding does not even reference the 2013 Trust. Under these facts, substantial justice does not require this action to be dismissed or stayed. Even if the 2013 Trust were addressed in the Missouri Proceeding, the motion would still be denied. "In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a 'suitable' place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California. The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to
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		sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation. [Citations.] [¶] On a motion for forum non conveniens, the defendant, as the moving party, bears the burden of proof. The granting or denial of such a motion is within the trial court's discretion, and substantial deference is accorded its determination in this regard." (<i>Stangvik v. Shiley Inc.</i> (1991) 54 Cal.3d 744, 751.) Lyndell, as the moving party, argues the private and public interest factors favor Missouri because both trusts address real property located in Missouri as well as interests in a Missouri corporation. He does not, however, address the identity or location of witnesses. Similarly, he does not address the burden on the two courts. It is not enough to simply say that the dispute involves Missouri property and should, therefore, be tried in Missouri, particularly when the California Proceeding involves a trust created and administered (according to the allegations of the petition) in California. For the foregoing reasons, the court does not exercise its discretion to dismiss or stay the California Proceeding. The motion is DENIED. Petitioner is directed to give notice.
6	Anderson/Callahan; 30-2024-01389721	Motion to Be Relieved as Counsel of Record Mueller Christiansen LLP's Motion to Be Relieved as Counsel for Deena Callahan (ROA 277) is GRANTED.

		"Generally, an attorney has a right to end the attorney-client relationship, but when litigation remains pending, the court has control over such termination, in part to ensure that the client is not harmed—for example, by abandonment of counsel on the eve of trial." (<i>Flake v. Neumiller & Beardslee</i> (2017) 9 Cal.App.5th 223, 281.) This matter is currently set for trial on 10-06-26, which presents the possibility Deena Callahan may be harmed if the motion is granted. However, "[t]he determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court" (<i>Manfredi & Levine v. Superior Court</i> (1998) 66 Cal.App.4th 1128, 1133) and the court exercises its discretion to grant the motion. This case is more than two and one-half years old. The previous trial date of 06-15-26 was continued to 10-06-26 due to an earlier motion to withdraw from representation of Deena Callahan by separate counsel. (ROA 224). This motion to be relieved has been pending since May 2026. Weighing the age of the case, the earlier continuation, and the notice of this motion given to Callahan in May 2026, on the one hand, against the possible prejudice to Callahan because of her counsel's withdrawal, on the other hand, the trial date will be CONTINUED to December 8, 2026. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.

